

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Giselle Athziry Munoz

23PR000051

REVIEW HEARING

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Adrian Ortiz v. Harvest Inn Team, LLC

25CV000565

DEFENDANT’S MOTION TO COMPEL ARBITRATION

TENTATIVE RULING: The motion is DENIED.

Defendant Harvest Inn Team, LLC (Harvest Inn) moves, pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 and the Federal Arbitration Act (9 U.S.C. §§ 1 and 16), for an order compelling Plaintiff Adrian Ortiz to submit his individual, non-PAGA claims to arbitration pursuant to a written arbitration agreement. Harvest Inn further moves for an order enforcing the agreement’s class and collective action waivers by dismissal of class and collective claims. Finally, Harvest Inn seeks a stay of the instant litigation pending resolution of the arbitration.

A. PRELIMINARY MATTERS

The Court rules on Plaintiff’s evidentiary objections as follows.

Objection No. 1: (Labelled Objection No. 4. See Objections at 2:14-25.) SUSTAINED as to “Mr. Ortiz’s first language is Spanish” on grounds of lack of personal knowledge and lack of foundation. OVERRULED in all other respects.

Objection Nos. 2-4: OVERRULED.

Objection No. 5: (Labelled Objection No. 4. See Objections at 4:3-9.) SUSTAINED as to “and determined that Plaintiff’s individual non PAGA claims are subject to arbitration.” OVERRULED in all other respects.

Objection No. 6: (Labelled Objection No. 5. See Objections at 4:3-9.) OVERRULED. The only portion of the subject matter that tends towards hearsay is the statement “During the telephone conference, agreed [sic] with this process.” (See Objections at 4:19-20; see also Declaration of Shane Singh at 2:28.) However, as the sentence contains no subject, it is not clearly hearsay. It is, however, of no evidentiary value for the same reason.

B. LEGAL BACKGROUND

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a petition to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*)). The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*)

C. LEGAL ANALYSIS

1. Harvest Inn Makes a Prima Facie Showing of a Binding Agreement to Arbitrate All of Plaintiff's Claims Other than Non-Individual PAGA Claims

Harvest Inn presents evidence that it and Plaintiff entered into that certain Arbitration Agreement attached as Exhibit A to the Declaration of Ana Bahena (Bahena Decl.).⁴ Mr. Ortiz concedes that during his onboarding meeting “I recall signing various documents relating to benefits, retirement information, and other employment forms.” (Declaration of Adrian Ortiz at ¶ 13.) He further declares that “I could not understand the documents so I told her I would sign and then signed the documents.” (*Id.* at ¶ 16.) Finally, Mr. Ortiz declares that “I was shown a document by my attorney that I understand Defendant claims is an arbitration agreement I signed. I do not remember signing that document, and it does not look familiar to me, but I recognize my signature.” (*Id.* at ¶ 18.)

The Court finds that the scope of claims subject to arbitration pursuant to the Arbitration Agreement is broad and encompasses all of Plaintiff's claims against Walsh in the instant action, except for Non-Individual PAGA Claims, which are expressly excluded pursuant to Section 2, subdivision (iii).

Based on the foregoing, the Court finds that Walsh has carried its initial burden of proving, by a preponderance of the evidence, an agreement to arbitrate each of Plaintiff's claims, except for Non-Individual PAGA Claims. (*Rosenthal, supra*, 14 Cal.4th at 413.)

2. Harvest Inn Has Waived the Right to Arbitrate the Dispute

Through the Opposition, Plaintiff argues that Walsh waived its right to compel arbitration. (See *id.* at 3:20, *et seq.*) The Court agrees.

⁴ A certified English translation of the Arbitration Agreement is attached as Exhibit C to the Declaration of Bruce Taylor filed May 19, 2026. The Court finds that the Declaration of Mr. Taylor is sufficient to certify the English-language translation of the Agreement.

“On petition of a party to an arbitration agreement . . . the court shall order the petitioner and the respondent to arbitrate the controversy . . . unless it determines that . . . [t]he right to compel arbitration has been waived by the petitioner . . .” (Code Civ. Proc., § 1281.2, subd. (a).) As the California Supreme Court has made clear, the catch-all category called “waiver” actually consists of at least four distinct legal defenses to the enforcement of an agreement to arbitrate. As discussed in *Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307 (*Platt Pacific*), “[g]enerally, ‘waiver’ denotes the voluntary relinquishment of a known right. But it can also mean the loss of an opportunity or a right as a result of a party’s failure to perform an act it is required to perform, regardless of the party’s intent to abandon or relinquish the right....” (*Id.* at p. 315.) The *Platt Pacific* Court noted that one line of case law discusses “that a party may ‘waive’ its right to arbitrate by failing to timely demand arbitration. We conclude that those decisions use the word ‘waiver’ in the sense of the loss or forfeiture of a right resulting from failure to perform a required act.” (*Id.* at 315.) The Court discussed another line of cases addressing the question, “whether a party has abandoned its right to arbitration by conduct inconsistent with the exercise of the right” and noted that this question “is altogether different from the question of whether a condition precedent to the contractual right to arbitrate has occurred or has been legally excused.” (*Id.* at 318.)

The Court further elucidated this area of law in *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 (*Quach*). There, the Court held that “[i]n determining whether a party to an arbitration agreement has lost the right to arbitrate by litigating the dispute, a court should treat the arbitration agreement as it would any other contract, without applying any special rules based on a policy favoring arbitration. That is, courts should apply the same procedural rules that they would apply to any other contract.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 583 (*Quach*).) “[U]nder California law, a party may, as a result of its litigation conduct, lose its right to compel arbitration on various grounds” including estoppel, forfeiture, and timeliness. (*Ibid.*)

“To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584 (*Quach*).)

Analysis in the present context requires a somewhat detailed review of the litigation.

Mr. Ortiz served Harvest Inn with summons and a copy of the Complaint on April 10, 2025. On September 19, 2025, Harvest Inn filed an Answer consisting of a general denial and fifty-four affirmative defenses asserted in conclusory, abstract language. As its forty-sixth affirmative defense, Harvest Inn alleges that “Plaintiff is subject to a valid and enforceable arbitration agreement and must submit his individual PAGA claims to arbitration under *Viking River Cruises, Inc. v. Moriana*.” (Answer at 12:20-21.)

Mr. Ortiz presents evidence of the following. On September 23, 2025, counsel for Mr. Ortiz emailed counsel for Harvest Inn stating, “as previously noted, Defendant’s Answer references a purported arbitration agreement. To date, however, no copy of such agreement has been produced. Please advise.” (Declaration of Joshua Shirian at ¶ 7, Exh. C (Shirian Decl.).) On

September 26, 2025, Mr. Ortiz propounded discovery on Harvest Inn. (See *id.* at ¶ 8.) On October 6, 2025, and again on October 7, 2026, counsel for Mr. Ortiz sent follow up emails inquiring about the arbitration agreement. (See *id.* at ¶ 10, Exh. D.)

On October 7, 2025, the parties submitted a Joint Case Management Conference Statement. In a section titled “Other Matters – Defendants” the statement reads, “Plaintiff signed a Voluntary Arbitration Agreement, which included a class action waiver, on or around May 20, 2021.” (See *id.* at § IV(B), p. 4.) In the immediately following section titled “Alternative Dispute Resolution,” the “Defendants” subdivision states, in its entirety, “[t]he Parties have discussed an early mediation, and Defendants would be interested in an early mediation. Prospective mediators have been discussed, but no agreement has been reached.” (*Id.* at § V(B), p. 4.) The Joint CMC Statement contains no mention of an intent to arbitrate the dispute.

Mr. Ortiz presents evidence that counsel for Harvest Inn provided counsel for Mr. Ortiz with a copy of the subject arbitration agreement on October 14, 2025. On October 21, 2025, counsel for Mr. Ortiz emailed counsel for Harvest Inn, in part, “please be advised that if Defendant intends to file a Motion to Compel Arbitration, Plaintiff will oppose such motion. Nevertheless, we remain open to a meet and confer discussion on the issue.” (Shirian Decl. at ¶ 14, Exh. G.) Counsel for Harvest Inn never replied to this inquiry, and never, at any point, suggested an intention to proceed to arbitration. (*Id.* at ¶ 15.) At or around this time, counsel began discussing proposed language for a Belaire West Notice. (*Id.* at ¶ 16, Exh. H.)

On November 14, 2025, Harvest Inn filed a Case Management Conference Statement (CMC Statement) that confirmed that “Defendant has provided Plaintiff’s attorneys with a copy of the arbitration agreement signed by Ortiz, which includes a class action waiver.”

Harvest Inn, through the Reply, argues that “[t]he assertion of the affirmative defense and production of the Agreement during this litigation, are themselves steps consistent with preserving arbitration, not abandoning it.” (*Id.* at 3:10-12.) In light of the shotgun, boilerplate approach to alleging affirmative defenses in the Answer, the Court is unpersuaded that the mere inclusion of the forty-sixth affirmative defense constitutes particularly strong evidence of an intent by Harvest Inn to pursue arbitration. However, it is unquestionably not inconsistent with such intent.

It is uncontroverted that sometime between December 23, 2025, and January 5, 2026, the Lewis Brisbois Bisgaard & Smith attorney handling the litigation for Harvest Inn changed from Dominique N. Thomas to Shane Singh. (See Notice of Change of Handling Attorney Within Firm filed January 5, 2026; see also Declaration of Shane Singh at ¶ 3 and Exh. B (Singh Decl.), and Shirian Decl. at ¶¶ 5 and 20 and Exh. J.)

Thereafter, Harvest Inn filed another CMC Statement on January 13, 2026, on Judicial Council form CM-110. The CMC Statement was signed by attorney Shane Singh. Section 10, subdivision (c) of the form states, “In the table below, indicate the ADR process or processes that the party or parties are willing to participate in, have agreed to participate in, or have already participated in (check all that apply and provide the specified information) . . .” Harvest Inn

checked the boxes corresponding to “Mediation” and “Settlement Conference.” Of note, the box corresponding to “Binding Private Arbitration” was not checked.

More importantly to the instant analysis, through that January 13, 2026, CMC Statement, Harvest Inn explicitly requested a jury trial in the matter. (See *id.* at § 5.) On January 23, 2026, Harvest Inn remitted its jury fee deposit. The Notice of Deposit, also filed January 23, 2026, was also signed by attorney Shane Singh.

Harvest Inn filed another CMC Statement, signed by Shane Singh, on February 13, 2026. It, too, requested a jury trial, and indicated a willingness to participate in a settlement conference but no interest in participating in mediation or binding private arbitration. (See *id.* at §§ 5 and 10, subd. (c).)

Mr. Ortiz presents evidence that on March 11, 2026, counsel for Harvest Inn proposed language for a protective order to be entered in the matter. (See Shirian Decl. at ¶ 26.) On March 24, 2026, Mr. Singh, on behalf of Harvest Inn filed a Stipulation and [Proposed] Protective Order with the Court, which the Court signed and entered on March 30, 2026. During this period the parties continued negotiating a Belaire West Notice and further agreed to Simpluris as third-party administrator. (*Ibid.*)

Finally, Mr. Ortiz presents evidence that, on or about April 7, 2026, “Defendant communicated for the first time that it intended to seek to compel Plaintiff’s claims to arbitration based on the purported arbitration agreement.” (Shirian Decl. at ¶ 27.)

This first communication of an intent to move to compel arbitration was three days’ shy of the one-year anniversary of service of process on Harvest Inn in the action, and six months after Harvest Inn represented to the Court that Plaintiff had signed an arbitration agreement. More important than the mere delay, however, are the affirmative acts that Harvest Inn took in the interim which evidence an intent to relinquish and/or abandon the right to arbitrate the dispute: (1) Multiple requests for a jury trial and the depositing of jury fees; (2) Multiple CMC Statements indicating a willingness to mediate and/or participate in a settlement conference but giving no indication of a willingness to participate in private binding arbitration; (3) The filing of a stipulated request for entry, by the Court, of a protective order; (4) Negotiations towards a Belaire West Notice; and (5) Agreement to the selection of a third-party administrator. The Court further notes Harvest Inn’s counsel’s failure to respond to inquiries from Mr. Ortiz’ counsel regarding whether Harvest Inn intended to move to compel arbitration.

The Court finds that the foregoing establishes “by clear and convincing evidence that [Harvest Inn] knew of the contractual right and intentionally relinquished or abandoned it.” (*Quach, supra*, 16 Cal.5th at 584.)

Importantly, Harvest Inn does not deny or refute any of the foregoing facts or evidence through its Reply papers. Harvest Inn argues, in effect, that after Mr. Singh took over handling of the case in December 2025, he proceeded to review the materials and at some point (presumably not until April 2026) *he* “determined it was appropriate to proceed with arbitration.” (Reply at 3:12-24.)

From the Court’s perspective, however, Harvest Inn had, by that point, already intentionally relinquished its right to compel Plaintiff to arbitrate. Moreover, the explanation ignores the fact that *Mr. Singh* was involved in several of the acts that evidence Harvest Inn’s intention to relinquish and abandon the right to arbitrate the dispute including the request for a jury trial and submission of jury fees and filing of the request that the Court enter a protective order in the matter.

Finally, the Court finds that Mr. Ortiz has also presented clear and convincing evidence that Harvest Inn knew of its contractual right to enforce Mr. Ortiz’ class action waiver and intentionally relinquished and/or abandoned it as well. The Court notes that the Belaire West Notice and third-party administrator are necessary only in class actions. Counsel’s active discussion and agreement on these topics are significant indicia of an intention to abandon that aspect of the agreement as well.

Based on the foregoing, the motion is DENIED.

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Bank of America N.A. v. Sydney L. Grant

25CV002709

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

TENTATIVE RULING: The motion is GRANTED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Bank of America, N.A. (“Plaintiff”) moves, pursuant to Code of Civil Procedure §§ 2023.010 *et seq.* and 2033.280,⁵ for an order that truth of all specified facts in the Request for Admissions, Set One, propounded by plaintiff Bank of America, N.A. on defendant Sydney L. Grant by mail on 03/23/2026, be deemed admitted.

“If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted.” (§ 2033.280, subd. (b).) “The

⁵ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.